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Gutierrez v.

Pomona Unified School District, et al.,

Case No. 26PSCP00245

ORDER ON

PETITION FOR PERMISSION TO FILE LATE CLAIM

Petitioner

Issac Gutierrez's Petition Seeking Permission to File a Late Claim is DENIED.

Background

Petitioner

Issac Gutierrez, a minor, by and through her Guardian Ad Litem Rosa Yvette Gutierrez, ("Petitioner") alleges that on November 20, 2024, Petitioner sustained personal injuries after encountering dangerous conditions on public property (Alcott Elementary School).

On

June 11, 2026, the instant petition was filed.

Legal

Standard

Prior to filing a suit

against a public entity, a plaintiff must comply with the Government Tort

Claims Act, which states, in part: "no suit for money or damages may be brought

against a public entity on a cause of action for which a claim is required to

be presented . . . until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board . . ." (Gov. Code, § 945.4.)

A claim for death or injury to person or personal property shall be presented not later than six months after the accrual of the cause of action. (Gov. Code, § 911.2, subd. (a).) When a claim required to be presented not later than six months after the accrual of the cause of action is not presented within that time, a written application may be made to the public entity for leave to present that claim. (Gov. Code, § 911.4, subd. (a).) The application shall be presented to the public entity within a reasonable time not to exceed one year after the accrual of the cause of action and shall state the reason for the delay in presenting the claim. The proposed claim shall be attached to the application. (Gov. Code, § 911.4, subd. (b).)

If an injured party who has failed to timely file a claim has submitted a written application to the public entity for leave to present such claim and the application has been denied, the injured party may petition to the court for relief from the claim requirements. (Gov. Code, § 946.6, subd. (a); *Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1777.) The petition shall be filed within six months after the application to the board is denied or deemed denied pursuant to Section 911.6. (Gov. Code, § 946.6, subd. (b).)

The court shall relieve the petitioner from the requirements of Section 945.4 and grant the petition under Section 946.6, subdivision (c) if the petitioner demonstrates by a preponderance of the evidence the application to the public entity under Section 911.4 was made within a reasonable time not exceeding one year after the accrual of the cause of action and was denied or deemed denied, and that one or more of the following is applicable: (1) the failure to present the claim was due to mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim, (2) the person who sustained the injury was a minor during all of the time specified in Section 911.2 for presentation of the claim, (3) the person who sustained the injury was physically or mentally incapacitated during all of the time specified in Section 911.2 and failed to present a claim by reason of that disability, or (4) the person who sustained the injury died before the expiration

of the time specified in Section 911.2. (Gov. Code, § 946.6, subd. (c); Munoz, supra, 33 Cal.App.4th at p. 1778.) A petitioner may not successfully argue excusable neglect when she fails to take any action in pursuit of the claim within the six-month period. (Id., at 1778-1779.)

“The mere recital of mistake, inadvertence, surprise or excusable neglect is not sufficient to warrant relief. Relief on grounds of mistake, inadvertence, surprise or excusable neglect is available only on a showing that the claimant’s failure to timely present a claim was reasonable when tested by the objective ‘reasonably prudent person’ standard.” (Department of Water & Power v. Superior Court (2000) 82 Cal.App.4th 1288, 1293 (DWP).) “A petitioner or counsel for a petitioner must show more than the mere failure to discover a fact until too late; he or she must establish the failure to discover that fact in the use of reasonable diligence. [Citation.]” (Munoz v. State of California (1995) 33 Cal.App.4th 1767, 1783.) Where the lateness of the claim is attributable to the failure of the parties to conduct a reasonably prudent investigation of the circumstances, relief from filing a late claim is properly denied. (Leake v. Wu (1976) 64 Cal.App.3d 668, 673; DWP, supra, 82 Cal.App.4th at p. 1296 [where petitioner and counsel either had actual possession of or readily available access to information and the lateness of a claim is attributable to lack of diligence, the relief is properly denied].)

Discussion

Judicial

Notice

Pomona Unified

School District (“PUSD”) requests that the Court take judicial notice of the Petitioner’s December 23, 2025 Application for Leave to present Late Claim, and attached documents, attached as Exhibit 1 to PUSD’s opposition. (Evidence Code §§ 452, subd. (c)-(d), (h), and 453.) PUSD also requests that the Court take judicial notice of the Court’s file from LASC Case No. 25PSCV03911, especially the documents attached as Exhibits 2-4 to PUSD’s opposition (Summons & Complaint, April 30, 2026 Demurrer Order, & Request for Dismissal).

These

documents were previously filed in a Los Angeles County Superior Court case and can be found in LASC Case No. 25PSCV03911's file. Accordingly, PUSD's requests for judicial notice are granted. However, the Court takes judicial notice only as to "the existence, content and authenticity of public records and other specified documents" and the legal effect of the documents' language when that effect is clear. The Court does not take judicial notice of the truth of the factual matters asserted in those documents. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400; *Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265; *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1568 ["[N]either a finding of fact made after a contested adversary hearing nor a finding of fact made after any other type of hearing can be indisputably deemed to have been a correct finding. As we have noted, '[u]nder the doctrine of judicial notice, certain matters are assumed to be indisputably true, and the introduction of evidence to prove them will not be required.' (1 Witkin Cal. Evidence (3d ed. 1986) § 80.) Taking judicial of the truth of a judge's factual finding would appear to us to be tantamount to taking judicial notice that the judge's factual finding must necessarily have been correct and that the judge is therefore infallible. We resist the temptation to do so."].)

Merits

Petitioner

moves the Court for an order granting leave to file a late claim pursuant to Government Code section 946.6.

Petitioner alleges that on November 20, 2024, he sustained personal injuries when he encountered a dangerous condition at his public elementary school. (Mot., at p. 4.) On May 7, 2025, Petitioner directed a government claim to PUSD and the other named Defendants. (Id.) After not receiving a response, Petitioner filed a complaint on October 29, 2025 (Case No. 25PSCV03911); however, after receiving the complaint, PUSD claimed it did not receive a Government Tort Claim form. (Id.) Petitioner issued a late claim on December 23, 2025. (Id.) The Court in Case No. 25PSCV03911 sustained PUSD's demurrer with leave to amend on April 30, 2026, on the grounds that Petitioner failed to allege sufficient facts demonstrating substantial compliance with the Government Claims Act's claim presentation requirement and the December 2025 application for leave to present

a late claim was untimely. (Id., Exh. D.) On June 12, 2026, the Court in Case No. 25PSCV03911 entered Petitioner's request for dismissal of the entire action of all parties and all causes of action without prejudice. Petitioner filed this application on June 11, 2026.

Petitioner

alleges that the Court in 25PSCV03911 was wrong when it found that the late claim previously filed on December 23, 2025 is the first notice that PUSD had of the claim's particulars. (Mot., at p. 9.) Specifically, Petitioner argues that the complaint filed on October 29, 2025 (that was found to be defective for failure to exhaust administrative remedies) was sufficient to substantially comply with the Government Tort Claims Act. (Id.) Thus, the petition is timely. (Id.)

Petitioner

further argues that relief must be liberally granted when the claimant is a minor. (Id.) In addition, Petitioner argues that the failure to timely present claims was due to excusable neglect, that he acted diligently and within the statutory timeline when he learned of the neglect, and that PUSD will not be prejudiced by a grant. (Id., at p. 14-22.)

In opposition, PUSD argues that the petition must be denied due to res judicata because Judge Lynette Gridiron Winston dispensed a prior judgment on the same issues and dismissed the claims on April 30, 2026. (Opp., at pp. 8-10.) PUSD further argues that even if the Court finds res judicata to not apply here, the petition should still be denied because Petitioner has failed to timely submit the application. (Id., at pp. 10-11.)

"Three elements must exist for res judicata (or claim preclusion) to apply: '(1) the decision in the prior proceeding is final and on the merits; (2) the present proceeding is on the same cause of action as the prior proceeding; and (3) the parties in the present proceeding or parties in privity with them were parties to the prior proceeding.' [citation omitted]." (Association of Irrigated Residents v. Department of Conservation (2017) 11 Cal.App.5th 1202, 1219.) Here, the first suit did not result in a final decision on the merits, because the complaint was dismissed without prejudice. Thus, claim preclusion does not apply here.

Issue preclusion depends on three questions: "Was

the issue decided in the prior adjudication identical with the one presented in the action in question? Was there a final judgment on the merits? Was the party against whom the plea is asserted a party or in privity with a party to the prior adjudication?' [citation omitted]." (*Gurrola v. County of Los Angeles* (1984) 153 Cal.App.3d 145, 151.) As noted, the first suit did not result in a final decision on the merits, because the complaint was dismissed without prejudice and the demurrer ruling was on pleading sufficiency. Thus, issue preclusion does not apply here either.

The Court, however, finds that Petitioner did not timely submit an Application for Leave to file a late claim. Pursuant to Government Code section 911.4, an application must be presented to the public entity within one year after the accrual of the cause of action. PUSD alleges that Petitioner submitted his December 2025 Application to PUSD on January 5, 2026, 13.5 months after the alleged incident. (Opp., at p. 11.) Petitioner does not dispute that the December 23, 2025 late claim was untimely, but asserts that the complaint filed on October 29, 2025 in Case No. 25PSCV03911 constitutes timely notice under the claim presentation statutes. (Mot., at p. 9.) The Court finds this argument unpersuasive.

Pursuant to Government Code section 911.4, subdivision (b), "the application shall be presented to the public entity." Section 915, subdivision (a) specifies how the claim or application must be presented to a local public entity:

(1) "Delivering it to the clerk, secretary, or auditor thereof.

(2) Mailing it to the clerk, secretary, auditor, or to the governing body at its principal office.

(3) If expressly authorized by an ordinance or resolution of the public entity, submitting it electronically to the public entity in the manner specified in the ordinance or resolution."

Therefore, even if the complaint was considered a valid first notice, the Proof of Service filed by Petitioner in Case No. 25PSCV03911 states that PUSD was served the summons and complaint on November 24, 2025, more than a year after the alleged injury. The Court finds Petitioner's Application for Leave to file a late claim to PUSD was

untimely.

In reply, Petitioner argues that Government Code section 946.4 presents an independent statutory basis for relief, and PUSD has failed to carry its burden pursuant to the Code. (Reply at p. 4.) However, “[p]oints raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument.” (*American Drug Stores, Inc. v. Stroh* (1992) 10 Cal.App.4th 1446, 1453).

The petition
is denied.